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PITCHFORD *v.* CAIN

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

No. 24–7351. Argued March 31, 2026—Decided May 28, 2026

In 2004, two black teenagers, Terry Pitchford and Eric Bullins, robbed a grocery store near Grenada, Mississippi. During the robbery, Bullins shot and killed the white store owner. Bullins reached a plea agreement and received a 20-year sentence for the homicide. The State charged Pitchford with capital murder and sought the death penalty. During jury selection at Pitchford's trial, the prosecutor used peremptory strikes against four of the five black potential jurors. As this Court held in *Batson* v. *Kentucky*, 476 U. S. 79, the Equal Protection Clause bars prosecutors from exercising peremptory challenges based on race. In *Batson* and subsequent cases, the Court has spelled out a three-step process for a trial court to determine whether a prosecutor employed a peremptory challenge based on race. Here, Pitchford's counsel raised an objection under *Batson* and made a prima facie showing that the strikes of the four black jurors were based on race (step one). The trial court asked the prosecutor for race-neutral reasons for each strike, and the prosecutor offered reasons (step two). The trial court declared the prosecutor's stated reasons to be race neutral, but the trial court did not afford defense counsel an opportunity to rebut the prosecutor's race-neutral reasons as pretextual (step three); nor did it make any findings regarding whether the prosecutor's stated reasons were pretextual. At the close of jury selection, defense counsel sought to raise the *Batson* issue again, but the trial court twice cut off defense counsel. The empaneled jury, consisting of 11 white jurors and 1 black juror, convicted Pitchford of capital murder and sentenced him to death.

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On direct appeal, the Mississippi Supreme Court concluded that Pitchford had waived his *Batson* objection by not arguing to the trial court that the prosecutor's proffered explanations were pretextual. Pitchford later filed a habeas corpus petition in U. S. District Court. Applying the applicable standard to obtain federal habeas relief under the Antiterrorism and Effective Death Penalty Act of 1996, the District Court concluded that the Mississippi Supreme Court had unreasonably applied *Batson* and had unreasonably determined that Pitchford waived his *Batson* objection. The District Court explained that no state court had conducted the full three-step *Batson* inquiry, and that the trial court had "thwarted" the "attempt by Pitchford's counsel to argue pretext."

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706 F. Supp. 3d 614, 624. The Fifth Circuit reversed the District Court, concluding that the Mississippi Supreme Court's waiver finding was reasonable.

Held: The Mississippi Supreme Court unreasonably applied the clearly established *Batson* precedents and unreasonably determined that Pitchford waived his opportunity to rebut the prosecutor's asserted race-neutral reasons for the peremptory strikes of four black prospective jurors. Pp. 398–401.

(a) "[T]he job of enforcing *Batson* rests first and foremost with trial judges." *Flowers* v. *Mississippi*, 588 U. S. 284, 302. The bedrock principle that a party ordinarily must raise an objection in the trial court in order to preserve the issue for appeal applies in the *Batson* context. See *Ford* v. *Georgia*, 498 U. S. 411, 423. But here, the Mississippi trial court erroneously omitted *Batson*'s third step: The trial court did not afford Pitchford's counsel a sufficient opportunity to rebut the prosecutor's proffered race-neutral reasons for striking the four black jurors and never determined whether the prosecutor's stated reasons were pretextual. Pitchford's counsel did not waive the *Batson* argument. As the U. S. District Court explained, "Pitchford *did* object to the explanations provided when he raised the issue again." 706 F. Supp. 3d, at 624. The Mississippi trial court explicitly assured Pitchford's counsel that the *Batson* objection was preserved, stating: "I think you already made those, and they are clear in the record." 1 App. 175. Especially given that specific assurance by the trial court, it was unreasonable for the Mississippi Supreme Court to conclude that Pitchford waived the *Batson* argument.

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The State's argument that Pitchford preserved his *Batson* objection but nonetheless somehow waived his *Batson* pretext argument does not make much sense and is not a reasonable reading of this record. At that key point in the jury-selection process—after the prosecutor had asserted facially race-neutral reasons for the peremptory strikes—the *Batson* objection *was* a *Batson* pretext argument. Defense counsel's rebuttal necessarily would include a pretext argument—specifically, that similarly situated white jurors were not challenged by the prosecutor. If allowed to continue, Pitchford could have argued that the prosecutor did not challenge white jurors similarly situated to the challenged black jurors, which is precisely what Pitchford's post-trial motion later did argue. In this case, the ordinary trial-court procedure for resolving *Batson* claims at step three never occurred—notwithstanding the repeated efforts of Pitchford's counsel to pursue and preserve the *Batson* objection. Pp. 398–401.

(b) The Antiterrorism and Effective Death Penalty Act standard for reviewing claims on federal habeas is deferential to the state court, but

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deference does not mean abdication, and "deference does not by definition preclude relief." *Miller-El* v. *Dretke*, 545 U. S. 231, 240. In light of the entire record in this case, the Court agrees with the U. S. District Court that the Mississippi Supreme Court unreasonably applied the clearly established *Batson* precedents and unreasonably determined that Pitchford waived his opportunity to rebut the prosecutor's asserted race-neutral reasons for the peremptory strikes of four black prospective jurors. 28 U. S. C. §§2254(d)(1), (2). P. 401.

126 F. 4th 422, reversed and remanded.

KAVANAUGH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and SOTOMAYOR, KAGAN, and JACKSON, JJ., joined. GORSUCH, J., filed a dissenting opinion, in which THOMAS, ALITO, and BARRETT, JJ., joined, *post*, p. 401.

Joseph J. Perkovich, by appointment of the Court, 607 U. S. 1265, argued the cause for petitioner. With him on the briefs were *Joseph C. Welling*, *John R. Mills*, *J. Scott Gilbert*, *Jessica L. Ellsworth*, *Catherine E. Stetson*, *Jo-Ann Tamila Sagar*, *Johannah Cassel-Walker*, and *Katherine B. Wellington*.

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Scott G. Stewart, Solicitor General of Mississippi, argued the cause for respondents. With him on the brief were *Lynn Fitch*, Attorney General of Mississippi, *Justin L. Matheny* and *Anthony M. Shults*, Deputy Solicitors General, *Daniel Kim*, Assistant Solicitor General, *LaDonna C. Holland* and *Allison K. Hartman*, Special Assistant Attorneys General.

Emily M. Ferguson argued the cause for the United States as *amicus curiae*. With her on the brief were *Solicitor General Sauer*, *Assistant Attorney General Duva*, *Deputy Solicitor General Feigin*, and *William A. Glaser*.*

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*Briefs of *amici curiae* urging reversal were filed for the American Civil Liberties Union Foundation et al. by *Katherine L. Pringle*, *Robert S. Chang*, *Cecillia D. Wang*, *Cassandra Stubbs*, *Claudia Van Wyk*, *Megan D. Byrne*, and *Arijeet Sensharma*; for the Constitutional Accountability Center et al. by *Elizabeth B. Wydra*, *Brianne J. Gorod*, *Joshua D. Blecher-Cohen*, and *Barbara E. Bergman*; for Fair and Just Prosecution et al. by *Daniel Woofter* and *Kevin K. Russell*; for the Mississippi Legislative Black Caucus by *Charles L. McCloud*, *Kimberly Broecker*, and *W. Tucker*

JUSTICE KAVANAUGH delivered the opinion of the Court.

In *Batson* v. *Kentucky*, 476 U. S. 79 (1986), this Court held that the Equal Protection Clause bars prosecutors from exercising peremptory challenges based on race. In *Batson* and subsequent cases, the Court has spelled out how a trial court should determine whether a prosecutor employed a peremptory challenge based on race. After the defendant makes a prima facie showing that a peremptory strike was based on race (step one), the prosecutor must provide a race-neutral reason for the challenged strike (step two). Then, at step three, defense counsel has an opportunity to rebut the prosecutor's race-neutral reason as pretextual, and the trial court in turn decides whether the prosecutor's race-neutral reason for striking a juror is pretextual "in light of all evidence with a bearing on it." *Miller-El* v. *Dretke*, 545 U. S. 231, 252 (2005); see *Flowers* v. *Mississippi*, 588 U. S. 284, 301–303 (2019); *Snyder* v. *Louisiana*, 552 U. S. 472, 478–479 (2008).

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Carrington; for the NAACP Legal Defense & Educational Fund, Inc., by *Ashley Burrell*, *Janai Nelson*, *Samuel Spital*, *Daniel Harawa*, *Catherine Logue*, and *Christopher Kemmitt*; and for Linda Lee et al. by *Amy R. Upshaw*.

A brief of *amici curiae* urging affirmance was filed for the State of Alabama et al. by *Steve Marshall*, Attorney General of Alabama, *A. Barrett Bowdre*, Solicitor General, *Robert M. Overing*, Principal Deputy Solicitor General, *George L. Muirhead*, Assistant Solicitor General, and *Jordan Mauldin* and *Matthew J. Clark*, Assistant Attorneys General, and by the Attorneys General for their respective States as follows: *Stephen J. Cox* of Alaska, *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Raúl R. Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris W. Kobach* of Kansas, *Liz Murrill* of Louisiana, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew Wrigley* of North Dakota, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *David W. Sunday, Jr.*, of Pennsylvania, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, and *John B. McCuskey* of West Virginia.

Geoffrey C. Shaw and *Elizabeth R. Moulton* filed a brief for Habeas Corpus Scholars as *amici curiae*.